IN THE CIRCUIT COURT OF THE
8TH JUDICIAL CIRCUIT IN AND FOR
GILCHRIST COUNTY FLORIDA

CASE NO. 21-2022-CA-000042-CAAX-MX

JORDAN BARRON,

Plaintiff,

v.

BLAC INVESTMENTS, INC.,
a Florida corporation, d/b/a Tri-County Metals,
JOSH BRYANT, individually,
MESHAWN HAGAN, individually,
CHARLES E. SEAGER, individually, and
MAZZELLA NEW TECH CORPORATION
d/b/a New Tech Machinery,

Defendants.
_____/

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PLAINTIFF'S RESPONSES TO DEFENDANT MAZZELLA NEW TECH CORPORATION'S COLLATERAL SOURCE REQUEST FOR PRODUCTION

The Plaintiff, JORDAN BARRON, by and through his undersigned counsel, hereby gives notice that he has responded to the Defendant Mazzella New Tech Corporation's Collateral Source Request for Production propounded under certificate of service dated May 3, 2023.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing was sent via E-Mail to (jviggiani@conroysimberg.com; lgradel@conroysimberg.com; eservicejax@conroysimberg.com) JohnViggiani, Esquire; CONROY SIMBERG, *Counsel for Defendants*, 4190 Belfort Road, Suite 222, Jacksonville, FL 32216 AND via e-mail to (tjackson@insurancedefense.net;

bbowlin@insurancedefense.net; lukstally-pleadings@ls-law.com) Tabitha G. Jackson, Esquire; LUKS, SANTANIELLO, PETRILLO, COHEN & PETERFRIEND, *Counsel for Defendant Mazzella*, 6265 Old Water Oak Road, Suite 201, Tallahassee, FL 32312 on this 6th day of July 2023.

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By *\/s/ Christopher J. Rush*
Christopher J. Rush (FBN 621706)

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By *\/s/ Randall M. Shochet*
Randall M. Shochet (FBN 959421)

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GENERAL OBJECTIONS

1. Plaintiff objects to the extent that any Request asks for information that is protected by attorney-client privilege, work product privilege, or any other privilege recognized by Florida law.

2. Plaintiff objects to the extent that any Request that seeks information or documents containing confidential information pertaining to or invading the privacy of the Plaintiff herself or of persons or entities not parties to this action.

3. Plaintiff objects to these Requests insofar as they seek irrelevant information that is not likely to lead to the discovery of admissible evidence.

4. Plaintiff objects to these Requests to the extent they seek information that is not within Plaintiff's custody and control.

5. Plaintiff objects to these Requests in so far as they seek information to which the Defendant is privy of and thus discovery of such will constitute duplication and unjustified expense.

6. Plaintiff objects to these Requests because of burdensomeness based on the fact that the time and expense of production of said information outweighs any potential value of the particular discovery.

7. All documents will be produced or made available for inspection and/or copying only at a time and place to be mutually agreed upon between the parties. Documents produced will not be produced at opposing counsel's office. Copies will be produced only upon payment of copying costs.

8. Plaintiff will incorporate these general objections into each specific response to each Request.

9. Without waiving these objections and by way of response, Plaintiff provides the following responses.

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SPECIFIC RESPONSES AND FURTHER OBJECTIONS TO
DEFENDANT MAZZELLA NEW TECH CORPORATION'S
COLLATERAL SOURCE REQUEST FOR PRODUCTION TO PLAINTIFF

1. Copies of any and all notices and notifications of the Plaintiff's intent to claim damages from the alleged tortfeasor which have been sent to any and all collateral source providers pursuant to § 768.76 (6) of the Florida Statutes, and any applicable hospital lien ordinance.

   RESPONSE: None.

2. Copies of any and all claims of lien, statements, correspondence or documentation received from all providers of collateral sources asserting or waiving any claim of subrogation or reimbursement pursuant to § 768.76 (7) of the Florida Statutes, and any applicable hospital lien ordinance provided to the Plaintiff.

   RESPONSE: None.

3. Copies of any and all subrogation or reimbursement notices, policy provisions and claims of lien for all providers of collateral sources for medical treatment received by Plaintiff as a result of the incident that is the subject of this litigation.

   RESPONSE: Attached.

4. Any and all documentation establishing the amount of money and benefits paid by any and all collateral sources for medical treatment received by the Plaintiff as a result of the incident which is the subject of this litigation.

   RESPONSE: Attached.

5. Copies of any and all releases of hospital liens and satisfactions of hospital liens pertaining to the Plaintiff for any medical and chiropractic care rendered as an alleged result of the incident which is the subject of this litigation.

   RESPONSE: None.

6. Copies of any and all Complaints and Statements of Claim filed by any medical provider against the Plaintiff for any medical and chiropractic care which is alleged to have been rendered as a result of the incident which is the subject of this litigation.

   RESPONSE: None.

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7. Copies of all drafts, checks, money orders and receipts showing payment by the Plaintiff of any hospital lien charges which are alleged to have been incurred as a result of the incident which is the subject of this litigation.

RESPONSE: None within Plaintiff's possession, however, see attached workers' compensation lien.

8. Copies of any correspondence between the Plaintiff and any healthcare provider, including hospitals, pertaining to collection of accounts, payment of bills and liens and reimbursement/subrogation rights.

RESPONSE: None.

9. Any and all workers' compensation, Tricare/Champus, Medicare, HRS Medicaid, hospital liens, HMO notices, PPO notices, ERISA plan, health insurance, medical payment (med pay) and commercial PIP notices of subrogation and reimbursement rights pertaining to any healthcare (both medical and chiropractic) rendered to Plaintiff as an alleged result of the incident which is the subject of this litigation.

RESPONSE: Attached.

10. Copies of any and all drafts and checks showing payment by any workers' compensation carrier, Tricare/Champus, Medicare, HRS Medicaid, health insurance, HMO, PPO, ERISA plan, med pay plan, any public program providing medical expenses and commercial PIP to Plaintiff and any healthcare provider (medical and chiropractic) for the benefit of the Plaintiff.

RESPONSE: None in Plaintiff's possession.

11. Copies of any checks, drafts, documentation and correspondence sent by the Social Security Administration, motor vehicle accident insurer (including PIP), any federal, state or local income disability provider, any public program providing disability payments, and income disability insurer to the Plaintiff for any wage loss and loss, disability and loss of earning capacity payments made as an alleged result of the incident which is the subject of this action.

RESPONSE: None.

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12. Copies of any contract or agreement by any group, organization, partnership, or corporation to provide, pay for, or reimburse the costs of hospital, medical, dental, or other healthcare services that pertain to the Plaintiff herein.

RESPONSE: None.

13. Copies of any contractual or voluntary wage continuation plan and contract provided by Plaintiff's employer(s) or by any other system intended to provide wages during a period of disability.

RESPONSE: None.

14. Copies of the Complaints in any lawsuit and arbitration concerning a dispute between any collateral source providers as defined in § 768.76 and Plaintiff.

RESPONSE: None.

15. Produce all Medicare Summary Notices (MSN), or any other notices, reports, statements, or other documents from any source that describe, total or reference any Medicare benefits that Plaintiff has received from the date of the accident till the present.

RESPONSE: None.

16. Produce a printout showing all benefits paid by Medicare for any and all services or supplies that your providers and suppliers billed through Medicare and are contained on the Plaintiff's personal account history at www.mymedicare.gov.

RESPONSE: None.

17. Produce all correspondences or other documents from CMS or any other source that describe, total or reference any liens on the claims raised in this case.

RESPONSE: None.

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